DARCAL (PRIVATE) LIMITED

Versus

MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER AND RURAL DEVELOPMENT N.O

AND

THE CHAIRPERSON, ZIMBABWE LAND COMMISSION N.O

AND

THE CHAIRPERSON, INSIZA DISTRICT LANDS COMMITTEE N.O

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 16 AND 19 FEBRUARY 2026

Opposed Application

P. Dube, for the applicant
M. Takaendesa, for the 1st and 2nd respondents
No appearance for the 3rd respondent

KABASA J: This is an application for review wherein the applicant seeks the following order:-

> "1. The proceedings before the 1st respondent in case reference MLAFWRD 2/1 upholding the 2nd respondent's findings are hereby quashed and remitted to the office of the 1st respondent for reconsideration.
>
> 2. Costs of suit on an attorney-client scale."

The background to the application is this:-

The applicant was the owner of Atherstone Farm situated in the Insiza district. The farm was gazetted on 29 June 2001. Upon such gazetting the applicant sought audience with the 1st respondent and offered to the Government, a portion of the farm for resettlement purposes. The applicant's proposal was to retain use of the remainder. As a result, 4 046,94 hectares was allocated to new farmers and the applicant was paid for the improvements thereon. The applicant was to use 2 334,6432 hectares.

On 12 March 2015 the 3rd respondent wrote to the applicant withdrawing the agreement and advising that the 2 334 6432 hectares were to be allocated to new farmers. The said new farmers subsequently moved onto the property. Appeals to the 1st and 2nd respondent were not successful.

The applicant was aggrieved by the 1st respondent's dismissal of the appeal and brought the matter on review on the following grounds:-

1. The 1st respondent committed a gross irregularity contemplated in section 3 of the Administrative Justice Act as read with sections 68 and 71 of the Constitution in that it unlawfully, unreasonably and unfairly upheld the 2nd respondent's decision that nullified an agreement that entitled the applicant to occupy a portion of Atherstone Farm.

1.1 In doing so the 1st respondent committed a gross irregularity by violating the applicant's following rights;

1.1.1 Right to administrative justice.

1.1.2 Right to hold, use and occupy property

1.1.3 Right to have their matter heard by an impartial tribunal.

2. The 1st respondent committed a gross irregularity in that it unlawfully and unreasonably ruled that the entire Atherstone farm was gazetted by the Government in 2000 despite the fact that the applicant had proven that the government in terms of section 8(1) of the Land Acquisition Act (Chapter 20:10) had agreed to let the applicant use and occupy a portion of the farm measuring 2 334,6432 hectares.

The application was opposed by the 1st and 2nd respondents. The 3rd respondent did not file any papers, an indication of its decision to abide by the court's decision.

The 1st and 2nd respondents took 2 points *in limine*. The first was to the effect that there is no application before the court as the Commissioner of Oaths failed to endorse the date on which the deponent appeared before him/her.

The second point *in limine* related to the lack of jurisdiction of the court to hear the matter. After posing questions to counsel for the respondent, this point *in limine* was abandoned. I will make no further reference to it.

This judgment therefore is concerned with the sole point *in limine* on whether there is an application before the court.

Advocate Dube, for the applicant contended that the one who raises the issue of the lack of contemporaneity must prove, otherwise it should be taken that the deponent signed the

affidavit before the Commissioner notwithstanding the lack of date on the Commissioner's part.

Counsel further argued that the cases cited by counsel for the respondents refer to instances where there was no date at all and/or where the dates differed between the one the deponent put as date of appearance before a Commissioner of Oaths and the date stated as date such oath was administered by the Commissioner.

Whilst these scenarios are clear and brook no argument in that there is no way one can say the act of commissioning was contemporaneous when there are no dates at all or where such dates differ, should this be the interpretation to rely on in light of decided cases?

In *Sheng An Mining (Pvt) Ltd* v *Daka & Anor* HB 65-24 DUBE-BANDA J cited, with approval the decision in *Mandishayike* v *Sithole* HH 798-15 where the court said:-

> "An affidavit is a written statement made on oath before a Commissioner of Oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the Commissioner of Oaths and must append his or her signature to the document in the presence of such Commissioner. Equally the Commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The Commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."
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> The judge went on to state that:-
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> "What comes out of precedent is that an affidavit must have a date on which the oath was administered. It is insufficient that the affidavit might have a date on which the deponent signed it. See *Ndoro & Anor* v *Conjugal Enterprises (Private) Limited & Anor* HH 814-22, *State* v *Hurle & Ors* (2) 1998 (2) ZLR 42.

In *Ariston Management Services* v *Econet Wireless Zimbabwe Limited* S 123-23, the Supreme Court had this to say:-

> "In the Mandishaya case (sic) the court remarked that the deponent of an affidavit must take the oath in the presence of the Commissioner. Equally, the Commissioner must append his or her signature on the statement in the presence of the deponent. The court went on to say that the Commissioner must also endorse the date on which the oath was administered and that those acts must occur contemporaneously.
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> The reason behind that requirement is for the court to be satisfied that the oath was administered at a given date in the presence of both the deponent and the Commissioner. Without the date, the court may never be able to ascertain if the oath was properly administered in accordance with the law."

Where, as counsel for the applicant argued, the date inserted by the deponent is different from the date shown as the date the oath was administered, the document will speak for itself. It would not require more than just referring to the two different dates. In those circumstances therefore one would not talk of the court not being able to ascertain if the oath was properly administered.

The mere reference to the need for the court to be able to ascertain if the oath was properly administered can only make sense where there is only one date, that is the date the deponent states as date he/she appeared before the Commissioner. The absence of the date by the Commissioner would give rise to the question of whether there was contemporaneity. What better way of showing such contemporaneity than the two dates, one for the deponent and the other by the Commissioner indicating when such oath was administered?

The argument that the *Mandishayike* decision (supra) was wrong was rejected by the Supreme Court.

Counsel for the applicant cited *G & G Preserves v Sibanda* HB 221-25, a judgment by a single Judge for the proposition that there is no legal requirement for two dates and so a single date suffices.

The *Mandishayike* judgment (supra) is by two Judges of this court and so is binding unlike the judgment by a single Judge.

Further precedent by the Supreme Court speaks to the Mandishayike decision and therefore confirms the position stated therein.

It is important to note that the *Econet* case (supra) speaks to the contemporaneity of the actions and the need for the court to be able to ascertain that such actions were done on the same date and time. The principle therein is what is important and not arguing the matter on the basis of the facts of a particular matter. The point therefore is not that each case must be considered on its own particular circumstances but that the contemporaneous action must be easily ascertainable.

Counsel further contended that a litigant who questions the contemporaneity must adduce evidence to prove the lack of contemporaneity. What evidence can possibly be led when the affidavit or purported affidavit speaks for itself? The one who says there was

contemporaneity must be the one to show that there was such contemporaneity. How such a litigant does that is not an issue I need detain myself on

That said, I am persuaded by counsel for the respondent's submissions. The absence of the date on which the oath was administered, which date ought to have been reflected on the Commissioner's signature fails to show that the deponent took the oath on the date the Commissioner administered such oath. The contemporaneity is not ascertainable and the respondents are within their rights to question the validity of the application in light of the malady afflicting the founding affidavit.

There is therefore no valid application.

In the result I make the following order:-

1. The point *in limine* be and is hereby upheld.
2. There being no valid application, the matter be and is hereby struck off the roll, with costs.

Dube-Tachiona & Tsvangirai, applicant's legal practitioners
Civil Division of the Attorney General, respondents' legal practitioners